

24CHCV02879 24CHCV02879

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-09-17

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MOTION TO BE

RELIEVED AS COUNSEL

Motion filed on: June 16, 2026.

MOVING PARTY: Neil M. Howard, Esq., counsel for Plaintiff

Daniel Magallanes

RESPONDING PARTY: N/A

NOTICE: OK.

RELIEF: Neil M. Howard, Esq. to be relieved as counsel for

Plaintiff Daniel Magallanes

RULING: Conditionally granted. Counsel shall file a revised

Proposed Order (MC-053) reflecting the current hearing dates within five (5) court days, no later than September 24, 2026.

BACKGROUND

On August 9, 2024, Plaintiff Daniel Magallanes ("Plaintiff")

filed this action against Defendants Craig Fossee, M.D., Providence Health System-Southern California dba Providence Holy Cross Medical Center-Mission Hills, and Does 1 through 100.

On June 16, 2026, Plaintiff's counsel, Neil M. Howard, Esq., filed the instant Motion to be Relieved as Counsel (MC-051), supported by his Declaration (MC-052), Supplemental Declaration, and Proposed Order (MC-053).

A hearing on Defendant Providence Health System-Southern California dba Providence Holy Cross Medical Center-Mission Hills' Motion for Summary Judgment is scheduled for November 19, 2026. A hearing on Defendant Craig Fossee, M.D.'s Motion for Summary Judgment is scheduled for December 22, 2026. The Mandatory Settlement Conference is scheduled for January 11, 2027, the Final Status Conference is scheduled for February 11, 2027, and the Jury Trial is scheduled for February 22, 2027.

No opposition was filed.

DISCUSSION

The Court has discretion to allow an attorney to withdraw, and such a motion should be granted, provided that there is no prejudice to the client, and it does not disrupt the orderly process of justice. (See *Ramirez v. Sturdevant* (1994) 21 Cal.App.4th 904, 915 (Ramirez); *People v. Prince* (1968) 268 Cal.App.2d 398, 403-407.) A motion to be relieved as counsel must be made on Judicial Council Form MC-051 (Notice of Motion and Motion), MC-052 (Declaration), and MC-053 (Proposed Order). (Cal. Rules of Court, rule 3.1362, subds. (a), (c), (e).) The requisite forms must be served "on the client and on all other parties who have appeared in the case." (Cal. Rules of Court, rule 3.1362, subd. (d).) Grounds for permitting an attorney to withdraw from representation include a breakdown in the attorney-client relationship. (*Estate of Falco* (1987) 188 Cal.App.3d 1004, 1014 (Falco).)

Here, Neil M. Howard, Esq. seeks to be relieved as counsel for Plaintiff on the ground that there has been a "total breakdown in communication" between counsel and Plaintiff that prevents counsel from effectively prosecuting this action. (Howard Decl., item 2.) Counsel further states that the underlying issues cannot be disclosed in writing because of the attorney-client privilege. (*Ibid.*) The Court finds this to be proper grounds for withdrawal. (Falco, *supra*, 188 Cal.App.3d at p. 1014.)

Further, counsel filed and served the required Notice of Motion (MC-051), Declaration (MC-052), and Proposed Order (MC-053). Plaintiff was served by U.S. mail at 15857 Lassen Street, North Hills, California 91343. (Proof of Service, p. 2.) On June 16, 2026, Plaintiff returned counsel's telephone call and confirmed that his mailing address, email address, and telephone number were current. (Supp. Howard Decl., ¶¶ 2-4.) Counsel also served counsel for the appearing Defendants. (Proof of Service, pp. 2-3.) The service requirements of California Rules of Court, rule 3.1362 are satisfied.

The Court finds no undue prejudice. The first presently scheduled summary judgment hearing is November 19, 2026, and trial is scheduled for February 22, 2027. Granting the motion will not disrupt the orderly process of justice. (See Ramirez, *supra*, 21 Cal.App.4th at p. 915.)

However, the Proposed Order (MC-053) identifies October 13, 2026 as the next scheduled hearing. The current docket instead reflects hearings on motions for summary judgment on November 19, 2026 and December 22, 2026. Counsel shall file a revised Proposed Order (MC-053) reflecting the current hearing dates within five (5) court days, no later than September 24, 2026. (Cal. Rules of Court, rule 3.1362, subd. (e).)

CONCLUSION

The motion is **CONDITIONALLY GRANTED**. Counsel shall file a revised Proposed Order (MC-053) reflecting the current hearing dates within five (5) court days, no later than September 24, 2026.

Upon submission and entry of the revised Order, Neil M. Howard, Esq. shall be relieved as counsel of record for Plaintiff Daniel Magallanes, effective upon the filing of a proof of service of the signed Order on Plaintiff.